# LOAN AGREEMENT

Kestrel Gardens | Denver, CO

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| **Borrower** | Kestrel Gardens Owner LLC |
| **Lender** | Harbor Mutual Life |
| **Collateral** | Kestrel Gardens |
| **Loan Amount** | $15,990,000 |
| **Rate** | 4.90% Fixed |
| **Closing Date** | May 10, 2018 |

**1. Loan and Interest.** Lender agrees to make a loan to Borrower in the principal amount of $15,990,000. The loan shall bear interest at a fixed rate of 4.90% per annum, calculated on an Actual/360 basis. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO.

**2. Maturity and Amortization.** The loan matures 4 years from the Closing Date. Monthly payments shall be interest-only for the first 4 months and thereafter based on a 30-year amortization schedule. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

**3. Prepayment.** Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

**4. Collateral.** The loan is secured by a first-lien mortgage on Kestrel Gardens, an assignment of leases and rents and a security interest in all personal property. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**5. Financial Covenants.** Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

**6. Reserves and Escrows.** Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**7. Reporting Requirements.** Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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**8. Cash Management.** Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

**9. Events of Default.** Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**10. Recourse Carve-Outs.** The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. Time is of the essence with respect to each and every provision of this instrument.

**11. Loan and Interest.** Lender agrees to make a loan to Borrower in the principal amount of $15,990,000. The loan shall bear interest at a fixed rate of 4.90% per annum, calculated on an Actual/360 basis. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**12. Maturity and Amortization.** The loan matures 5 years from the Closing Date. Monthly payments shall be interest-only for the first 26 months and thereafter based on a 30-year amortization schedule. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

**13. Prepayment.** Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

**14. Collateral.** The loan is secured by a first-lien mortgage on Kestrel Gardens, an assignment of leases and rents and a security interest in all personal property. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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**15. Financial Covenants.** Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**16. Reserves and Escrows.** Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

**17. Reporting Requirements.** Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**18. Cash Management.** Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. Time is of the essence with respect to each and every provision of this instrument.

**19. Events of Default.** Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**20. Recourse Carve-Outs.** The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**21. Loan and Interest.** Lender agrees to make a loan to Borrower in the principal amount of $15,990,000. The loan shall bear interest at a fixed rate of 4.90% per annum, calculated on an Actual/360 basis. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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**22. Maturity and Amortization.** The loan matures 5 years from the Closing Date. Monthly payments shall be interest-only for the first 23 months and thereafter based on a 30-year amortization schedule. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO.

**23. Prepayment.** Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

**24. Collateral.** The loan is secured by a first-lien mortgage on Kestrel Gardens, an assignment of leases and rents and a security interest in all personal property. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

**25. Financial Covenants.** Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**26. Reserves and Escrows.** Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**27. Reporting Requirements.** Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**28. Cash Management.** Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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**29. Events of Default.** Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

**30. Recourse Carve-Outs.** The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**31. Loan and Interest.** Lender agrees to make a loan to Borrower in the principal amount of $15,990,000. The loan shall bear interest at a fixed rate of 4.90% per annum, calculated on an Actual/360 basis. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**32. Maturity and Amortization.** The loan matures 7 years from the Closing Date. Monthly payments shall be interest-only for the first 15 months and thereafter based on a 30-year amortization schedule. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO.

**33. Prepayment.** Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

**34. Collateral.** The loan is secured by a first-lien mortgage on Kestrel Gardens, an assignment of leases and rents and a security interest in all personal property. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**35. Financial Covenants.** Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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**36. Reserves and Escrows.** Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

**37. Reporting Requirements.** Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**38. Cash Management.** Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

**39. Events of Default.** Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**40. Recourse Carve-Outs.** The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

**41. Loan and Interest.** Lender agrees to make a loan to Borrower in the principal amount of $15,990,000. The loan shall bear interest at a fixed rate of 4.90% per annum, calculated on an Actual/360 basis. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. Time is of the essence with respect to each and every provision of this instrument.

**42. Maturity and Amortization.** The loan matures 3 years from the Closing Date. Monthly payments shall be interest-only for the first 45 months and thereafter based on a 30-year amortization schedule. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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**43. Prepayment.** Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

**44. Collateral.** The loan is secured by a first-lien mortgage on Kestrel Gardens, an assignment of leases and rents and a security interest in all personal property. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**45. Financial Covenants.** Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**46. Reserves and Escrows.** Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**47. Reporting Requirements.** Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**48. Cash Management.** Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

**49. Events of Default.** Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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**50. Recourse Carve-Outs.** The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**51. Loan and Interest.** Lender agrees to make a loan to Borrower in the principal amount of $15,990,000. The loan shall bear interest at a fixed rate of 4.90% per annum, calculated on an Actual/360 basis. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

**52. Maturity and Amortization.** The loan matures 7 years from the Closing Date. Monthly payments shall be interest-only for the first 22 months and thereafter based on a 30-year amortization schedule. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. Time is of the essence with respect to each and every provision of this instrument.

**53. Prepayment.** Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

**54. Collateral.** The loan is secured by a first-lien mortgage on Kestrel Gardens, an assignment of leases and rents and a security interest in all personal property. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

**55. Financial Covenants.** Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

**56. Reserves and Escrows.** Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO.

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**57. Reporting Requirements.** Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**58. Cash Management.** Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**59. Events of Default.** Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**60. Recourse Carve-Outs.** The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**61. Loan and Interest.** Lender agrees to make a loan to Borrower in the principal amount of $15,990,000. The loan shall bear interest at a fixed rate of 4.90% per annum, calculated on an Actual/360 basis. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO.

**62. Maturity and Amortization.** The loan matures 8 years from the Closing Date. Monthly payments shall be interest-only for the first 39 months and thereafter based on a 30-year amortization schedule. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

**63. Prepayment.** Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO.

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**64. Collateral.** The loan is secured by a first-lien mortgage on Kestrel Gardens, an assignment of leases and rents and a security interest in all personal property. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**65. Financial Covenants.** Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**66. Reserves and Escrows.** Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

**67. Reporting Requirements.** Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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**70. Recourse Carve-Outs.** The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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